

NEW YORK STATE SUPREME COURT
COUNTY OF KINGS

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DAVID ALCINDOR,

Plaintiff,

Index No.:

- against -

CITY OF NEW YORK, RYAN KIRKWOOD,
and JOHN DOE,

SUMMONS

Venue is designated in
Kings County

Defendants.

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED and required to serve upon the attorneys for plaintiffs an Answer to the Complaint in this action within 20 days after service of this Summons, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York). In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of the venue designated is CPLR § 503 as Kings County is the county of residence for plaintiff.

Dated: New York, New York
November 6, 2023

LUMER LAW GROUP
Attorneys for Plaintiffs

By:



Michael Lumer, Esq.
14 Wall Street, Suite 1603
New York, New York 10005
(212) 566-5060

Defendants' Addresses:

The City of New York
Office of the Corporation Counsel
100 Church Street
New York, New York 10007

PO Ryan Kirkwood, Tax 950688
106 Precinct Station House
103-53 101st Street,
Ozone Park, NY, 11417-1707

NEW YORK STATE SUPREME COURT
COUNTY OF KINGS

----- X

DAVID ALCINDOR,

Plaintiff,

Index No.:

- against -

VERIFIED COMPLAINT

CITY OF NEW YORK, RYAN KIRKWOOD,
and JOHN DOE,

Defendants.

----- X

Plaintiff DAVID ALCINDOR, by his attorneys, the Lumer Law Group, hereby alleges upon information and belief as follows:

1. At all times hereinafter mentioned, plaintiff DAVID ALCINDOR was an adult resident of Kings County, in the City and State of New York.

2. At all relevant times hereinafter mentioned, defendant City of New York (the “City”) was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York and acts by and through its agencies, employees and agents, including but not limited to, the New York City Police Department (“NYPD”) and its employees and agents.

3. At all relevant times hereinafter mentioned, defendant RYAN KIRKWOOD was employed by the City as a member of the NYPD, Tax No.: 950688. KIRKWOOD is sued herein in his individual capacity.

4. At all relevant times hereinafter mentioned, defendant JOHN DOE was an individual employed by the City as a member of the NYPD whose full identity is unknown to plaintiff at this time. Doe is sued herein in his individual capacity.

5. This action was timely commenced, based, in part, on the tolling provisions enacted by Governor Cuomo by Executive Order 202.6 *et seq.*, which tolled the statute of limitations a total of 228 days, running from March 20, 2020, to November 4, 2020.

6. During the late evening hours of October 1, 2020, the plaintiff was lawfully present inside a motel located in Queens County, New York (the “premises”) when several men confronted him in a common area of the motel and challenged his presence inside the building.

7. The plaintiff explained that he was visiting a friend who was renting a room at the premises.

8. Seemingly moments later two police officers—defendants Kirkwood and Doe--arrived in the motel.

9. They too challenged plaintiff’s presence in the premises. When the plaintiff expressed his frustration and annoyance at being stopped and accused of wrongdoing when he had done nothing wrong the defendants responded by making clear that they would arrest him simply for talking back.

10. Without any explanation or justification the defendants seized and arrested plaintiff.

11. The plaintiff had not committed any crimes or offenses and the defendants knew and understood that they lacked probable cause for his arrest.

12. Plaintiff was transported to a local area police station house. From there, because he was not feeling well, he was brought to Jamaica Hospital where he was seen briefly.

13. He was then brought to Central Booking where he was held for over a day.

14. Plaintiff was not arraigned at that time, however. Instead, he was returned to the station house where he was held for a period of time before being returned to Central Booking. Upon information and belief, by the time he was arraigned plaintiff had been in NYPD custody for over 48 hours.

15. While plaintiff was in defendants' custody following his arrest, the defendants completed, or caused to be completed, arrest paperwork in which one or more of the defendants falsely claimed that plaintiff had damaged property owned by the motel.

16. These claims were false as the plaintiff did not participate in an assault or attempted robbery or any other conduct that could reasonably be viewed as criminal, nor did the video footage show the plaintiff participating in such criminal conduct.

17. The defendants forwarded, or caused to be forwarded, the arrest paperwork, and possibly other documentation, containing these materially and fundamentally false allegations to the Queens County District Attorney's office ("QCDA").

18. The purpose of transmitting the documentation concerning plaintiff's arrest to the QCDA was to ensure that the QCDA would initiate plaintiff's criminal prosecution.

19. Defendant Kirkwood is believed to have spoken with a member of the QCDA while plaintiff was still in defendants' custody, during which he continued to make materially false allegations about the circumstances surrounding plaintiff's arrest.

20. Plaintiff was arraigned in Queens County Criminal Court on one count of criminal mischief in the fourth degree.

21. Defendant Kirkwood swore in the criminal complaint that the plaintiff had damaged a security camera and other property at the premises. These claims were false and

Kirkwood understood them to be false at the time they were made or was otherwise recklessly and wantonly indifferent to the truth of the allegations.

22. Plaintiff was required to return to court on threat of arrest.

23. All charges were eventually dismissed against plaintiff and the prosecution terminated in his favor.

24. To the extent that either Kirkwood or Doe did not affirmatively participate in the decision to arrest the plaintiff, or effectuate the plaintiff's arrest, each defendant was aware that the other was engaged in unconstitutional conduct, that plaintiff's rights were being and would continue to be violated, and failed to take any steps to intervene in said unconstitutional conduct or otherwise protect plaintiffs from harm, despite ample opportunity to do so.

25. The individual defendants, including John Doe, are therefore liable for the false arrest and imprisonment of the plaintiff, as well as his malicious prosecution and the denial of a fair trial, either because they affirmatively did so or before of their deliberate failure to intervene in the other's unconstitutional conduct, and were, at all relevant times herein, acting jointly and in concert.

26. That at all times relevant herein, the defendants were on duty and acting within the scope of their employment, and their acts were done in furtherance of the City of New York's interests and without legal justification or excuse.

FIRST CAUSE OF ACTION

(Violation of Civil Rights Pursuant to 42 USC §1983
Against the Individual Defendants)

27. Plaintiff DAVID ALCINDOR repeats and realleges each and every allegation set forth in the preceding paragraphs as if more fully set forth at length herein.

28. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of law.

29. All of the aforementioned acts deprived plaintiffs of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth, Sixth, and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

30. The acts complained of were carried out by the individual defendants in their capacity as police officers, with all the actual and/or apparent authority attendant thereto, and pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

31. The individual defendants, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the NYPD and thereby the City of New York, which is forbidden by the Constitution of the United States.

32. The acts complained of deprived plaintiffs of their right:

- a. not to be deprived of liberty without due process of law;
- b. to be free from seizure and arrest absent probable cause;
- c. to receive equal protection under the law; and,
- d. to be free from unwarranted and malicious criminal prosecution.

33. By reason thereof, the individual defendants have violated 42 U.S.C. §1983 and caused plaintiffs to suffer emotional injuries, mental anguish, loss of liberty, economic loss, and

the loss of their constitutional rights, in an amount in excess of the jurisdictional minimum of this Court, and to be further entitled to punitive damages in a sum to be determined at trial.

SECOND CAUSE OF ACTION

(False Arrest and Imprisonment Pursuant to 42 USC §1983
Against the Individual Defendants)

34. Plaintiffs DAVID ALCINDOR repeats and realleges each and every allegation set forth in the preceding paragraphs as if more fully set forth at length herein.

35. The individual defendants willfully and intentionally seized, arrested, and caused the plaintiff to be imprisoned without any lawful basis, much less probable cause, and lacked any reasonable basis to believe probable cause existed.

36. To the extent that any of the individual defendants did not affirmatively seize or place plaintiff under arrest, each such defendant was aware that plaintiff's constitutional rights were being and would continue to be violated, and failed to take any steps to intervene in said unconstitutional conduct or otherwise protect plaintiff from harm, despite ample opportunity to do so.

37. As a result of their unlawful arrest by the defendants, the plaintiff was imprisoned and deprived of his liberty.

38. Plaintiff was conscious of the deprivation of his liberty and did not consent to any such deprivation.

39. By reason thereof, the individual defendants have violated 42 U.S.C. §1983 and caused the plaintiff to suffer emotional injuries, mental anguish, loss of liberty, economic loss, and the loss of his constitutional rights, in an amount in excess of the jurisdictional minimum of this Court, and to be further entitled to punitive damages in a sum to be determined at trial.

THIRD CAUSE OF ACTION

(Excessive Force Pursuant to 42 USC §1983
Against the Individual Defendants)

40. Plaintiffs DAVID ALCINDOR repeats and realleges each and every allegation set forth in the preceding paragraphs as if more fully set forth at length herein.

41. The individual defendants used physical force or caused physical force to be used against the plaintiffs to seize, detain, arrest, and imprison each plaintiff.

42. The defendants' use of force was objectively unreasonable or otherwise was used to further the unlawful arrest of the plaintiff.

43. The individual defendants, individually and collectively, subjected the plaintiff to excessive force in violation of the plaintiffs' rights under the Fourth Amendment to the United States Constitution.

44. By reason thereof, the individual defendants have violated 42 U.S.C. §1983 and caused plaintiff to suffer physical and emotional injuries, mental anguish, loss of liberty, and the loss of his constitutional rights, in an amount in excess of the jurisdictional minimum of this Court, and to be further entitled to punitive damages in a sum to be determined at trial.

FOURTH CAUSE OF ACTION

(Malicious Prosecution Pursuant to 42 USC §1983
Against the Individual Defendants)

45. Plaintiff DAVID ALCINDOR repeats and realleges each and every allegation set forth in the preceding paragraphs as if more fully set forth at length herein.

46. The individual defendants willfully and intentionally caused the initiation of plaintiff's prosecution through the communication of materially false statements and/or materially misleading factual claims to the KCDA.

47. There was no probable cause for the prosecution of plaintiff for any of the charged offenses.

48. The criminal prosecution was terminated in plaintiff's favor.

49. The defendants acted with malice in bringing about and sustaining the plaintiff's prosecution.

50. To the extent that any one of the individual defendants did not personally engage in any of the aforementioned conduct, they witnessed this conduct or otherwise knew and understood that such fabrications would be or had been communicated to prosecutors, had ample opportunity to intervene to prevent it from occurring or continuing to occur, and failed to do so.

51. By so doing, the individual defendants directly caused the plaintiff to be maliciously prosecuted, or through their failure to intervene in such misconduct by their fellow officers, aided and abetted in the violation of, plaintiff's rights under the Fourth and/or Fourteenth Amendments of the United States Constitution.

52. By reason thereof, the individual defendants have violated 42 U.S.C. §1983 and caused plaintiff to suffer emotional injuries, mental anguish, loss of liberty, and the loss of his constitutional rights, in an amount in excess of the jurisdictional minimum of this Court, and to be further entitled to punitive damages in a sum to be determined at trial.

FIFTH CAUSE OF ACTION**(§1983 Fabricated Evidence/Denial of Fair Trial
Claim Against the Individual Defendants)**

53. Plaintiff DAVID ALCINDOR repeats and realleges each and every allegation set forth in the preceding paragraphs as if more fully set forth at length herein.

54. The individual defendants willfully and intentionally subjected plaintiff to the denial of his right to a fair trial by fabricating evidence and communicating said materially false statements and/or materially misleading factual claims to the QCDA, thereby causing plaintiff to suffer a loss of liberty.

55. To the extent that any one of the individual defendants did not personally engage in any of the aforementioned conduct, they witnessed this conduct or otherwise knew and understood that such fabrications would be or had been communicated to prosecutors, had ample opportunity to intervene to prevent it from occurring or continuing to occur, and failed to do so.

56. By so doing, the individual defendants directly subjected the plaintiff to the denial of a fair trial through the use of fabricated evidence or through the failure to intervene in such misconduct by their fellow officers, and aided and abetted in the violation of, plaintiff's rights under the Fourth, Sixth, and/or Fourteenth Amendments of the United States Constitution.

57. By reason thereof, the individual defendants have violated 42 U.S.C. §1983 and caused plaintiff to suffer emotional injuries, mental anguish, loss of liberty, and the loss of his

constitutional rights, in an amount in excess of the jurisdictional minimum of this Court, and to be further entitled to punitive damages in a sum to be determined at trial.

SIXTH CAUSE OF ACTION

(§1983 Monell Claim Against the Municipal Defendant)

58. Plaintiff DAVID ALCINDOR repeats and realleges each and every allegation set forth in the preceding paragraphs as if more fully set forth at length herein.

59. The individual defendants' false arrest of plaintiff, and their failure to intervene or otherwise act to prevent or mitigate the harms being inflicted on the plaintiff, was carried out in accordance with an existing plan or policy created or otherwise condoned by the municipal defendant designed to increase the number of arrests made without regard to probable cause, and with deliberate indifference to the likelihood that the rights of plaintiff and others similarly situated would be violated and he would be harmed by this conduct.

60. More precisely, under this policy or plan, upon information and belief, members of the NYPD knowingly make arrests of individuals regardless of whether there are any factual basis for the charges. The arresting officer(s) would then make false statements of fact as to justify the arrest of the individual.

61. The purpose of this policy or plan was to generate large numbers of arrests to help the NYPD create a false impression of positive activity by their officers and to generate additional work requiring and otherwise resulting in overtime for the arresting officer(s).

62. In addition, members of the NYPD are evaluated, at least in part, on the basis of their "activity" which is measured by the number of arrests made and summonses issued, and other, similar criteria. Thus, officers are incentivized to make arrests and engage in other

police activity without sufficient legal cause in order to raise their levels of “activity” and improve the perception of their job performance.

63. The NYPD generally tracks the number of arrests made by each officer but does not take into account the outcome of these arrests, even though this information is available to the NYPD. As a result, members of the NYPD are well aware that they are being evaluated based in large part the number of arrests made, and that their supervisors do not care whether these arrests lead to actual criminal prosecutions, much less convictions.

64. Accordingly, officers are tacitly encouraged or pressured to make as many arrests as possible, which has caused and will continue to cause, its officers, including the individual defendants and their colleagues, to make arrests regardless of whether there was any factual basis for the charges. The officer(s) then fabricate claims of having seen the person(s) being arrested in possession of weapons or illegal narcotics or otherwise engaged in criminal activity.

65. The purpose of this policy or plan was to generate large numbers of arrests within the individual commands therein, in order to create a false or misleading impression of positive activity by their officers and satisfying internal quotas.

66. The policy or plan was kept in effect from, at least, 2006 through, at least, the date of plaintiff's arrest, despite the municipal defendant's knowledge that county prosecutors were often not charging the individuals arrested, or otherwise not actively pursuing their prosecutions, or that there was insufficient evidence to justify the arrests and illegal searches, or that the arresting officers were seeking to bolster the arrests with false

allegations, and that the prosecutors often had found insufficient cause to justify the imposition of charges or continued prosecution if charges were filed.

67. Rather than take steps to abolish this plainly unconstitutional and unlawful police, the municipal defendant continued to tacitly endorse this policy of deliberate misconduct.

68. It is manifestly clear through the litigation filed in New York State Supreme Court throughout the five boroughs, as well as the Eastern and Southern Districts of New York, that countless civilians have alleged that members of the NYPD deliberately arrested them without probable cause, particularly incident to search warrant executions. Thus, even if the municipal defendant was not the architect of the policy causing these unlawful arrests, they were certainly on notice of the practice.

69. It is therefore clear that the municipal defendant has not only tolerated, but actively fostered a lawless atmosphere within the NYPD and that the City of New York, at the bare minimum, has been on notice was deliberately indifferent to the risk that the undue emphasis on arrest quotas, or minimum activity levels, particularly when coupled with a deliberately indifferent level of supervision to false arrests and fabricated factual claims, would lead to the violation of individuals' constitutional rights in general, and caused the violation of plaintiff's rights in particular.

70. By reason thereof, the municipal defendant has violated 42 U.S.C. §1983 and caused plaintiff to suffer emotional and physical injuries, mental anguish, lost earnings,

imprisonment and the deprivation of liberty, as well as the loss of his constitutional rights, in an amount in excess of the jurisdictional minimum of this Court.

WHEREFORE, the plaintiffs demands judgment against defendants jointly and severally as follows:

- i. actual and compensatory damages against each defendant in an amount to be determined at trial;
- ii. punitive damages against each individual defendant in an amount to be determined at trial;
- iii. statutory attorney's fees pursuant to, *inter alia*, 42 U.S.C. §1988 and New York common law, disbursements, and costs of the action; and,
- iv. such other relief as the Court deems just and proper.

Dated: New York, New York
November 3, 2023

LUMER LAW GROUP
Attorneys for Plaintiff

By:



Michael Lumer, Esq.
14 Wall Street, Suite 1603
New York, New York 10005
(212) 566-5060

VERIFICATION

Michael Lumer, affirms under penalty of perjury that:

1. I am the attorney for the plaintiffs in the within action, am duly admitted to practice law before the Courts of New York State, and make this verification pursuant to CPLR 2106 and further pursuant to CPLR 3020(d)(3).

2. This verification is based on extensive interviews with plaintiffs, their prior testimony, and a review of the files and records in my possession.

3. I have read and know the contents of the foregoing Complaint, and verify the same are true based on my knowledge, except as to those matters alleged upon information and belief, and as to those matters, I believe them to be true.

4. None of the plaintiffs reside in the same county wherein my office is located and therefore I make this verification on the plaintiffs' behalf pursuant to CPLR 3020(d)(3).

Dated: New York, New York
November 3, 2023



Michael Lumer

